

Ravindra Kumar Singh v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 29 February 2024 · 2024:AHC:36221-DB · Writ - C No. 39057 of 2023 · **Writ disposed of; petitioner permitted to approach the CGRF under Clause 7.10 of the U.P. Electricity Supply Code, 2005 within three weeks; Forum to decide the complaint within eight weeks.**

HEADNOTE

Where a consumer challenges a communication dated 24.08.2023 informing him that urban tariff applies to his private tube-well because the supply emanates from an urban feeder, and that bills had been wrongly issued under the rural tariff — the consumer saying the land is in a village and the supply is used only for irrigation, the licensee saying tariff follows the nature of the feeder — the writ court will not decide which tariff applies. The issue falls for adjudication under Clause 7.10 of the U.P. Electricity Supply Code, 2005 by the Consumer Grievance Redressal Forum. The petition is disposed of with permission to approach the Forum within three weeks with a true attested copy of the order; if that is done, the Forum is to decide the complaint in accordance with law within the next eight weeks.

FACTUAL SUMMARY

Ravindra Kumar Singh's land lies in a village. He uses electricity to operate a private tube-well for irrigating his field. The supply is carried by a line emanating from an urban feeder. By a communication dated 24 August 2023, the Executive Engineer, Vidhut Vitran Khand-1, Dakshinanchal Vidhdut Vitaran Nigam Ltd., Mainpuri, told him that the urban tariff applied and that bills had been wrongly issued under the rural tariff. He said the change produced a difference of more than Rs. 5,000 in every monthly bill.

On 7 December 2023 the department's instructions dated 5 December 2023 were taken on record. Page 5 of those instructions set out fixed rates for villages and for urban areas, and counsel could not explain why urban charges were being applied. At the hearing on 29 February 2024 the department contended that tariff is determined by the nature of the feeder, while the petitioner contended that use of the tube-well only for agriculture made the change of tariff illegal. He challenged the 24 August 2023 communication in Writ-C No. 39057 of 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10

Rural versus urban tariff for a village private tube-well supplied from an urban feeder is for the CGRF under Clause 7.10

QUESTION

Does a dispute over rural versus urban tariff for a private agricultural tube-well supplied from an urban feeder fall to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005, rather than being decided on writ?

HOLDING

Yes. The dispute — the licensee applying urban tariff because the private tube-well is supplied by a line from an urban feeder, and the consumer saying rural tariff applies because the land is in a village and the supply is used only for irrigation — falls for adjudication under Clause 7.10 of the U.P. Electricity Supply Code, 2005 by the Consumer Grievance Redressal Forum. The writ court does not itself decide the tariff. The petitioner may approach the Forum within three weeks with a true attested copy of the order, and if he does the Forum shall decide the complaint in accordance with law within the next eight weeks. The petition stands disposed of.

¶ 6-7

QUALIFIER

Liberty to approach the Forum, with a three-week filing window and an eight-week decision if that window is met. The underlying tariff was neither granted nor refused.

FLAG Operative order is 29.02.2024 (Neutral Citation No. 2024:AHC:36221-DB), paras 1-7 as numbered there. The source PDF also contains earlier orders in the same writ (9.11.2023, 7.12.2023, 9.1.2024, 17.1.2024, 25.1.2024,

22.2.2024), which are not part of that numbering. The Court cited Clause 7.10 of the Supply Code, 2005. It did not cite a sub-clause, Regulation 7.10 of the 2007 CGRF Regulations, or clause 17.10.

PRINCIPLE TAGS

alternate-remedy-clause-7.10 The writ challenging the 24.08.2023 communication on rural versus urban tariff was disposed of without deciding the tariff, by permitting the consumer to take the complaint to the Consumer Grievance Redressal Forum under Clause 7.10 of the U.P. Electricity Supply Code, 2005. ¶ 6-7

disputed-bill-relegated-to-cgrf-clause-7.10 A monthly billing difference said to exceed Rs. 5,000, arising from a shift from rural to urban tariff on a private tube-well, was left to the Forum under Clause 7.10, to be decided in accordance with law within eight weeks of a complaint filed within three weeks. ¶ 3, 6-7

cgrf-jurisdiction-covers-billing-and-tariff-disputes Whether tariff follows the urban feeder or the village location and agricultural use of a private tube-well was treated as a tariff dispute for the Consumer Grievance Redressal Forum under Clause 7.10, not for decision on writ. ¶ 4-6

consumer-grievance-redressal-forum-remedy-clause-7.10 The petitioner was permitted to approach the Forum within three weeks with a true attested copy of the order; if he did, the Forum was to decide the complaint within the next eight weeks. ¶ 6-7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER URBAN TARIFF APPLIES BECAUSE THE PRIVATE TUBE-WELL IS FED FROM AN URBAN FEEDER, OR RURAL TARIFF APPLIES BECAUSE THE LAND IS IN A VILLAGE AND THE SUPPLY IS USED ONLY FOR IRRIGATION

Both contentions were recorded. The Court left the issue to the Consumer Grievance Redressal Forum under Clause 7.10. ¶ 4-6

NOT DECIDED — CORRECTNESS OF BILLS EARLIER ISSUED UNDER THE RURAL TARIFF, AND OF THE MONTHLY DIFFERENCE SAID TO EXCEED RS. 5,000

The communication asserted that rural-tariff bills were wrong. The Court did not examine the bills or the quantum. ¶ 2-3, 6

NOT DECIDED — WHICH GOVERNMENT ORDERS OR RATE SCHEDULES FIX VILLAGE AND URBAN CHARGES FOR AN AGRICULTURAL TUBE-WELL

On 9.11.2023 the Court asked the department for the government orders covering the case. On 7.12.2023 it noticed that page 5 of the instructions dated 5.12.2023 set out fixed rates for villages and urban areas. The 29.02.2024 order does not construe any government order or rate schedule.